

Terms and Conditions - LinkWire

Effective Date: 6/4/2026

Legal Disclaimer

These Terms of Service are provided as a template and should be reviewed by a qualified attorney before use. This document may not be fully compliant with the laws in your jurisdiction.

1. Introduction

These Terms of Service ("Terms") govern your access to and use of the LinkWire software service, including any associated websites, networks, applications, and other services provided by LinkWire (collectively, the "Service"). These Terms constitute a legally binding agreement between you and LinkWire ("we," "us," or "our"). By accessing or using our Service, you acknowledge that you have read, understood, and agree to be bound by these Terms.

2. Definitions

"User," "you," and "your" refer to the individual or entity accessing or using the Service.

"Subscription" refers to the purchased right to access and use the Service according to the selected plan.

"Content" refers to any text, images, videos, audio, or other material that appears on or through the Service.

"User Data" refers to any data, information, or material that you upload, input, or otherwise provide to the Service.

"Intellectual Property Rights" means all patent rights, copyright rights, moral rights, rights of publicity, trademark rights, trade dress and service mark rights, goodwill, trade secret rights, and other intellectual property rights.

3. Acceptance of Terms

By accessing or using our Service, you agree to be bound by these Terms and our Privacy Policy, which is incorporated by reference. If you are using our Service on behalf of an organization, you represent and warrant that you have the authority to bind that organization to these Terms. If you do not agree to these Terms, you may not access or use our Service.

4. Changes to Terms

We reserve the right to modify these Terms at any time. We will provide notice of significant changes by posting a prominent notice on our Service or by sending you an email. Your continued use of our Service after any such changes constitutes your acceptance of the revised Terms. If you do not agree to the revised Terms, you must stop using our Service.

5. Eligibility

To use our Service, you must be at least 18 years old or the age of legal majority in your jurisdiction, whichever is greater. By using our Service, you represent and warrant that you meet the eligibility requirements. If you are using the Service on behalf of an organization, you represent and warrant that the organization agrees to be bound by these Terms.

6. Service Description

LinkWire is a URL shortening service and web traffic analysis platform that allows users to create redirect links and view insights on how they are utilized.

7. Service Availability and Support

We will make reasonable efforts to keep our Service operational 24 hours a day, 7 days a week. However, we do not guarantee continuous, uninterrupted access to our Service, and operation of our Service may be interfered with by numerous factors outside our control.

We reserve the right to suspend access to the Service, in whole or in part, for maintenance or upgrades or to address security concerns, with or without notice. We will use reasonable efforts to schedule planned downtime during off-peak hours.

8. User Accounts

You must create an account to access the Service. You are responsible for:

- Providing accurate, current, and complete information
- Maintaining the confidentiality of your password and account
- All activities that occur under your account
- Notifying us immediately of any unauthorized use of your account

We reserve the right to suspend or terminate your account at our discretion if we believe you have violated these Terms or if we believe your account may pose a risk to our Service or other users.

9. Acceptable Use

You agree to use the Service only for lawful purposes and in accordance with these Terms. You shall not:

- Use the Service for any illegal or unauthorized purpose
- Violate any applicable laws or regulations
- Infringe the rights of others, including intellectual property rights
- Attempt to breach any security or authentication measures
- Transmit any viruses, malware, or other harmful code
- Interfere with or disrupt the Service or servers or networks connected to the Service
- Collect or harvest any information from the Service, including user accounts, user data, or content
- Impersonate any person or entity or falsely state or misrepresent your affiliation with a person or entity
- Use automated scripts to collect information from or otherwise interact with the Service

10. User Data

You retain all ownership rights to your User Data. By uploading, inputting, or otherwise providing User Data to the Service, you grant us a worldwide, non-exclusive, royalty-free license to use, reproduce, store, modify, display, and distribute your User Data solely as necessary to provide the Service to you and your authorized users.

We will not access your User Data except:

- To provide the Service to you and your authorized users
- To prevent or address technical or security issues
- To respond to customer support requests
- As required by law
- As explicitly permitted in writing by you

You are solely responsible for the accuracy, quality, integrity, legality, reliability, and appropriateness of your User Data. You represent and warrant that you have obtained all necessary rights, consents, and permissions to provide the User Data to us and to grant the rights granted herein.

11. Data Security and Privacy

Our Privacy Policy describes our practices regarding the information we collect from you. California residents have additional rights as set forth in our Privacy Policy.

12. Intellectual Property

All content provided by LinkWire, including but not limited to the Service, website, text, graphics, logos, icons, images, audio clips, digital downloads, data compilations, and software, is the property of LinkWire or its content suppliers and is protected by international copyright, trademark, and other intellectual property laws. The compilation of all content on the Service is the exclusive property of LinkWire and is protected by international copyright laws.

Our trademarks and trade dress may not be used in connection with any product or service without the prior written consent of LinkWire. We grant you a limited, non-exclusive, non-transferable, revocable license to use the Service for your internal business purposes or personal use, as applicable, in accordance with these Terms. This license does not include the right to:

- Modify or copy the Service or any content therein

- Use the Service for any commercial purpose other than your organization's internal business purposes
- Transfer, sell, rent, lease, sublicense, or distribute the Service to any third party
- Reverse engineer, decompile, or disassemble the Service
- Remove or alter any copyright, trademark, or other proprietary notices contained in the Service

13. Feedback

We welcome feedback, comments, and suggestions for improvement of the Service ("Feedback"). You grant us a perpetual, irrevocable, non-exclusive, royalty-free, transferable, worldwide license to use, copy, modify, create derivative works based on, distribute, publicly display, publicly perform, and otherwise exploit in any manner such Feedback in all formats and distribution channels now known or hereafter devised, without any attribution or compensation to you.

14. Third-Party Integrations

The Service may allow you to access, use, or interact with third-party websites, apps, content, and other products and services. When you use third-party services, their terms and privacy policies govern your use of those services.

We do not endorse and are not responsible or liable for the behavior, features, or content of any third-party service or for any transaction you may enter into with the provider of such services.

15. Disclaimer of Warranties

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. LinkWire DOES NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE, OR THAT ANY DEFECTS WILL BE CORRECTED, OR THAT YOUR USE OF THE SERVICE WILL MEET YOUR REQUIREMENTS OR EXPECTATIONS.

16. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL LINKWIRE BE LIABLE FOR ANY SPECIAL, INCIDENTAL, INDIRECT, OR CONSEQUENTIAL DAMAGES WHATSOEVER. SOME STATES DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATION MAY NOT APPLY TO YOU.

17. Indemnification

You agree to indemnify, defend, and hold harmless LinkWire, its officers, directors, employees, agents, and affiliates from and against any and all claims, liabilities, damages, losses, costs, expenses, or fees (including reasonable attorneys' fees) that such parties may incur as a result of or arising from your violation of these Terms, your User Data, or your use of the Service. LinkWire reserves the right to assume the exclusive defense and control of any matter otherwise subject to indemnification by you, in which event you will cooperate with LinkWire in asserting any available defenses.

18. Governing Law

These Terms shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of law provisions. Our failure to enforce any right or provision of these Terms will not be considered a waiver of those rights.

19. Dispute Resolution

Any disputes arising from these Terms will be resolved through binding arbitration in accordance with the American Arbitration Association rules. The arbitration shall take place in Rochester, New York. You agree to waive any right to a jury trial.

20. Entire Agreement

These Terms, including our Privacy Policy and any other agreements referenced herein, constitute the entire agreement between you and LinkWire regarding your use of our Service and supersede any prior agreements between you and LinkWire relating to your use of our Service.

21. Waiver and Severability

The failure of LinkWire to enforce any right or provision of these Terms will not be deemed a waiver of such right or provision. If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions will remain in full force and effect.

22. Assignment

These Terms, and any rights and licenses granted hereunder, may not be transferred or assigned by you without the prior written consent of LinkWire, but may be assigned by LinkWire without restriction.

23. Termination

We reserve the right to suspend or terminate your access to our Service at our sole discretion, with or without notice, for conduct that we believe violates these Terms or is harmful to other users of our Service, us, or third parties, or for any other reason. Upon termination:

- Your license to use the Service will immediately cease
- You will lose access to any User Data stored in the Service, unless otherwise specified in your Subscription plan
- We may, but are not obligated to, delete your User Data after a certain period of time

24. Survival

All provisions of these Terms which by their nature should survive termination shall survive termination, including, without limitation, ownership provisions, warranty disclaimers, indemnity, and limitations of liability.

25. Export Controls

You agree to comply with all applicable export and re-export control laws and regulations, including the Export Administration Regulations maintained by the U.S. Department of Commerce, and trade and economic sanctions maintained by the U.S. Treasury Department's Office of Foreign Assets Control. You warrant that you are not located in any country to which the United States has embargoed goods or has otherwise applied any sanctions.

26. Force Majeure

LinkWire shall not be liable for any delay or failure to perform resulting from causes outside its reasonable control, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, pandemics, epidemics, or disease.

27. No Third-Party Beneficiaries

These Terms do not confer any third-party beneficiary rights on any person or entity.